

26VECV02454 26VECV02454

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26VECV02454 TORRES V PERIMETER SECURITY

[TENTATIVE]

ORDER: Defendant Total Quality Logistics, LLC's Demurrer to the Complaint is SUSTAINED WITH 10 DAYS LEAVE TO AMEND as to the fifth cause of action and otherwise OVERRULED. Leave to amend is limited to curing the pleading defect in the fifth cause of action and not to add new parties or causes of action.

Introduction

Defendant Total Quality Logistics LLC (Defendant) demurred to Plaintiff Jose Esteban Medina Torres' (Plaintiff) Complaint. The demurrer placed into issue the four causes of action alleged against Defendant: the first COA for negligence, the fourth COA for negligent undertaking, the fifth COA for negligence per se, and the sixth COA for negligent selection, retention, and supervision of motor carrier/broker negligence.

Discussion

Defendant, a broker^[1], argued that all four COAs are preempted by the Federal Aviation Administration Authorization Act (FAAAA) (49 U.S.C. sec. 14501(c)(1).) The operative test in California is whether the state claim (1) relates to a broker's prices, routes, or services with respect to the transportation of property (if so, it is preempted), and (2) if preempted, whether it concerns motor vehicle safety. (*Casarez v. Irigoyen Farms, Inc.* (2025) 114 Cal.App.5th 873; *Miller v. C.H. Robinson Worldwide, Inc.* (9th Cir. 2020) 976 F.3d 1016, cert. denied,

142 S.Ct. 2866 (2022).) Plaintiff, a motor carrier,[2] alleged that he was injured while Co-Defendant Perimeter Security Group, LLC (PSG) (i.e., the shipper) was loading the tractor-trailer. Plaintiff alleged that Defendant is also liable for the injury because of Defendant's affirmative act during PSG's loading process. Defendant, a freight broker, "is in the business of arranging freight transportation for compensation between shippers (i.e., PSG) and motor carriers (i.e., Plaintiff)". (Compl. par. 6.) During the loading of the cargo, the responsibility of PSG, Plaintiff alleged that Defendant told PSG to "just proceed" with the loading of Plaintiff's tractor-trailer. PSG allegedly contacted Defendant during the loading process to notify Defendant of the unsafe condition of the load and to request a different motor carrier. (Compl. par. 24-26.) Despite this notice from PSG, Defendant told PSG to proceed with loading Plaintiff's motor carrier. The FAAAA preempts state negligence claims related to the "price, route, or service" of a "broker ... with respect to the transportation of property". (49 U.S.C. sec. 14501(c)(1).) The "price, route, or service" of a freight broker is the "arranging" or selection of a motor carrier. Plaintiff's claim of injury is within the scope of a freight broker's business – arranging/selecting the motor carrier (i.e., Plaintiff) – because Defendant chose Plaintiff and no other motor carriers were available when PSG requested a different motor carrier. Because Plaintiff's claim against Defendant involved the selection of the motor carrier (i.e., Plaintiff), Plaintiff's claim is preempted under the FAAAA.

However, Plaintiff asserted that the Safety Exception in the FAAAA applies. (49 U.S.C. sec. 14501(c)(2)(A).) The Safety Exception provides that the preemption provision "shall not restrict the safety regulatory authority of a State with respect to motor vehicles." In the Complaint, Plaintiff alleged additional facts to plead that PSG notified Defendant of the unsafe conditions of the load; Defendant telling PSG to "just proceed"; and Plaintiff being "physically struck, crushed, impacted and/or violently engaged by cargo, cargo-securement equipment (including straps), vehicles, equipment, and/or personnel involved in the loading". Plaintiff's claim also involves the safety of the load. Because the safety of the load is alleged to be at issue, the Court finds that the Safety Exception applies and Plaintiff's claim is outside the preemption.

Defendant's argument as to preemption is not persuasive.

Defendant asserted that the first COA for negligence failed to allege sufficient facts as to duty. Defendant argued that they are the freight broker and did not own, control, operate, or possess PSG's premise or the cargo loading process at PSG's facility. However, the claim against Defendant is not based upon any premise liability/dangerous condition of the property but is based upon Defendant's control. Plaintiff alleged that PSG notified Defendant of an unsafe condition as to the load. Plaintiff alleged that PSG requested a different motor carrier but none was available and Defendant exercised control by telling PSG to "just proceed". Defendant's argument ignores the fact allegation as to their alleged control, not of the premise/facility, but the loading process that involved an unsafe condition. Because of these facts, there are sufficient facts to plead a duty of care grounded upon Defendant's control over the loading process and Defendant's role in the injury that go beyond their capacity as a mere freight broker.

The demurrer to the first COA for negligence is OVERRULED.

Defendant asserted that there are insufficient facts alleged to support the fourth COA for negligent undertaking. Defendant again argued that they have no duty as to PSG's premise or workplace safety/loading process/protection of invitees because Defendant is a freight broker and the phone call was from PSG was a "routine logistical discussion". As reviewed above, the fact allegations are sufficient to plead that Defendant stepped outside of their role as a freight broker and/or their service of selecting/arranging a motor carrier. Further, Defendant's characterization of the telephone call between PSG and Defendant lacks any supportive facts within the four corners of the Complaint to show that the phone call was a "routine logistical discussion". Because the argument would rely upon facts outside the pleading, the argument is not persuasive for a demurrer.

Defendant asserted that the theory of negligent undertaking failed to plead facts as to each pleading element. To plead negligent undertaking, Plaintiff must allege: (1) That defendant, voluntarily or for a charge, rendered services to a third person; (2) That these services were of a kind that defendant should have recognized as needed for the protection of plaintiff; (3) That defendant failed to exercise reasonable care in rendering these services; (4) That defendant's failure to exercise reasonable care was a substantial factor in causing harm to plaintiff; and (5)(a) That defendant's failure to use reasonable care added to the risk of harm; or (5)(b) That

defendant's services were rendered to perform a duty that the third person owed to third persons including plaintiff; or (5)(c) That plaintiff suffered harm because of third person or plaintiff relied on defendant's services. (CACI no. 450C.) Defendant again argued that the alleged undertaking (i.e., the phone call between PSG and Defendant and the "just proceed" comment) was merely a routine logistical discussion and not an undertaking. However, the facts alleged in the Complaint do not support Defendant's characterization of the phone call. The phone call is alleged to be a request from the shipper for a different motor carrier because the cargo to be loaded could not safely be placed upon Plaintiff's tractor-trailer. Whether the phone call/direction from Defendant was "routine" or an administrative call cannot be determined based upon the facts alleged in the Complaint and would require a review of additional facts outside the four corners of the Complaint. The argument, again, is improper for the pleading stage. The facts alleged in the Complaint are sufficient to plead an undertaking.

Defendant argued that there are insufficient facts alleged to plead that Defendant's services were of a kind that Defendant should have recognized as needed for the protection of Plaintiff. However, Plaintiff expressly alleged that PSG expressly notified that the loading of the cargo on Plaintiff's carrier was unsafe. The fact allegation is sufficient to plead facts to show that Defendant should have recognized that the service of selecting another motor carrier was needed for the protection of Plaintiff.

Defendant argued that there are insufficient facts alleged to identify any negligent performance of the undertaking. However, the facts alleged that Defendant's service was to select the motor carrier and implicit within that service is that the correct or appropriate motor carrier would be selected for the cargo to be loaded upon. PSG notified Defendant that the conditions of the loading of the cargo on the motor carrier were unsafe and it is inferred that the incorrect motor carrier was chosen by Defendant. The improper selection of the motor carrier and/or failure to send a substitute motor carrier is sufficient fact pleading to allege negligent performance of the undertaking.

Defendant argued that the last pleading element is not sufficiently supported by fact pleading. However, Plaintiff expressly alleged that the failure to send a substitute motor carrier and Defendant's instruction to PSG to proceed with loading of the cargo increased the risk of harm due to the

unsafe condition of the load. The alleged failure to substitute the motor carrier is sufficient to plead Defendant's failure to exercise reasonable care and the failure is alleged to have increased the risk of harm since the unsafe loading of the cargo allegedly injured Plaintiff. Defendant argued that the increase in the risk of harm is attributable to PSG. However, the issue of whether the alleged increase of harm is attributable to Defendant or PSG is an issue not proper for a demurrer because analysis would require review of facts outside the four corners of the pleading. The arguments against the fourth COA are unpersuasive and Plaintiff sufficiently pled supportive facts to plead negligent undertaking.

The demurrer to the fourth COA is OVERRULED.

Plaintiff submitted to Defendant's arguments against the fifth COA for negligence per se and Plaintiff requested leave to amend.

The demurrer to the fifth COA is SUSTAINED WITH LEAVE TO AMEND.

Defendant asserted that the sixth COA for negligent selection, retention, and supervision of motor carrier/broker negligence failed to plead a duty owed and that Defendant is only a freight broker without any duties related to PSG's premise or the safety of PSG's loading process or control over the selection of the motor carrier/Plaintiff. The argument presented is the same argument reviewed under the first COA for negligence. The argument was not persuasive under the first COA and is not persuasive against the sixth COA based upon the same analysis provided above. The allegations as to the sixth COA are sufficiently plead with supportive facts.

The demurrer to the sixth COA is OVERRULED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.

[1] "Broker" is defined as "a person, other than a motor carrier or an employee or agent of a motor carrier, that as a principal or agent sells, offers for sale, negotiates for, or holds itself out by solicitation, advertisement, or otherwise as selling, providing, or arranging for, transportation by motor carrier for compensation." (49 U.S.C. sec. 13102(2).)

[2] "Motor Carrier" is

defined as "a person providing motor vehicle transportation for compensation". (49 U.S.C. sec. 13102(14).)